

## Rakshpal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 July 2022 · Writ-C No. 18560 of 2022 · Writ-C No. 18560 of 2022 ·  
**Liberty to file para 6.8 objection; coercive recovery stayed eight weeks**

### HEADNOTE

Writ seeking to quash a provisional assessment notice and recovery certificate was disposed of without any opinion on merits. The distribution licensee having stated that an objection to the demand would be decided in a time-bound manner, the petitioner was given liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing, with a stay of coercive action for eight weeks or until disposal of the objection, whichever is earlier.

### FACTUAL SUMMARY

Rakshpal invoked the Allahabad High Court's writ jurisdiction to quash a provisional assessment notice dated 15 October 2020 and a recovery certificate dated 11 December 2020 issued by the power distribution corporation, and to restrain recovery without following the statutory procedure. The distribution licensee's counsel, on instructions, stated that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

para 6.8 objection as alternative remedy

#### HOLDING

Without expressing any opinion on merits, a writ challenging a provisional assessment notice and recovery certificate is disposed of with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the assessing officer shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

### PRINCIPLE TAGS

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** Writ against a provisional assessment notice and recovery certificate was disposed of with liberty to file a para 6.8 objection, time-bound disposal after hearing, and an interim bar on coercive recovery. ¶ 1

**assessment-6.8-alternate-remedy** The Court declined to examine the assessment and recovery on merits and relegated the consumer to the statutory para 6.8 objection. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 15.10.2020 AND RECOVERY CERTIFICATE DATED 11.12.2020

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1